

Contract Host Based Delegation

Important:

This document may only be modified due to
country-specific legal requirements.

Please issue this document in English,
unless your local laws require a document in the local language.
In the latter case, an English translation has to be provided.

Issued: February 24th, 2014

Amended: November 2015

Mr. Ajit Gautam
GID: Z0046D7W

Name	Aravind Srinivasan
Department	GBS ASP H2R GMM R&AM-3
Location, Country	IN
Company name	STS
Telephone	
Mobile	+91 9591693384
E-mail	aravind.srinivasan@siemens.com

Your letter of Our reference Date	13-Jun-24
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Document protection class	Confidential
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Your Host Based Delegation to Germany

Dear Mr. **Ajit Gautam**,

As previously discussed with you, IN - **Siemens Technology and Services Private Limited** - hereinafter referred to as "the home company" – and **Siemens AG - Units of Corporate Core/Corporate Services** - hereinafter referred to as "the host company" -, you will be delegated to **Germany** and enter into the service of the host company. As agreed with the host company, the following will be effective as of the beginning of your delegation:

1. Host Based Delegation

You will be delegated as **IT Solution Expert** to **Siemens AG - Units of Corporate Core/Corporate Services** in **Munich** and will be an employee of the host company as of the beginning of your delegation. For operational and disciplinary purposes you will report to **Marco Brauner**.

2. Period of Delegation

Your delegation and employment relationship with the host company will start on **2024-07-01** and expire on **2026-06-30**. [Note: The delegation may initially be agreed for a maximum period of four years.]

The home company reserves the right to terminate your delegation with three months notice, or, if circumstances demand, with shorter notice or with immediate effect. For the termination of the employment contract, the applicable legal requirements apply.

3. Employment Relationship with the Home Company

For the period of your delegation, this delegation contract will replace your current employment contract with the home company. Your employment contract with the home company will – unless otherwise provided in this delegation contract – remain dormant for the period of your delegation and during this time, your income received from the home company will be suspended.

The period of your delegation will be taken into account in determining your time of service with the home company, provided you continue your employment with the home company immediately after your delegation has terminated.

4. Employment Relationship with the Host Company

The terms and conditions for your assignment with the host company will be confirmed with you locally. You will therefore be subject to the local rules and regulations.

4.1 Income

You will be integrated into the host company's income system for the period of your delegation.

The host company defines your functional income in the host country and is therefore responsible for breaking down your salary into fixed and variable salary components. Based on the agreement with the host company and beginning with the effective date of your delegation, you will receive, from the host company

an annual target salary of **EUR 78939** gross.

This annual target salary is composed of

an annual base salary of **EUR 78939** gross and

Details regarding these components will be communicated to you by the host company.

Your total income is determined and will be reviewed by the host company and solely relates to the function assigned to you during your delegation.

4.2 Exchange Rate / Currency Protection

The exchange rate at the start of your delegation will be guaranteed against exchange rate fluctuations for the period of your delegation. The income components which will be currency protected are the savings / reserves and the Quality of Living Allowance. Income you receive in home currency will not be taken into consideration.

The protected amount of **EUR 12241** was converted using an exchange rate of 1 = 0.01104 and will remain constant throughout the entire period of your delegation.

Any loss as a result of currency fluctuations will be compensated at the end of your delegation.

4.3 Working Hours / Public Holidays

Your weekly working hours will be based on the regulations of the host company. The local public holiday schedule will also apply to you.

4.4 Vacation

During the delegation, your vacation entitlement will be based on the host company's regulations. Should the vacation entitlement be based on years of service with the host company, your creditable years of service with Siemens shall be taken into consideration. As agreed with the host company, you are entitled to an annual vacation of **30** days which will be calculated on a pro rata basis in the year(s) your delegation commences and ends.

In addition to your local vacation entitlement, you are eligible for up to five additional days

paid vacation. Your total vacation entitlement in the host country including the up to five additional days is limited by your former vacation entitlement in the home country as a cap. The cap is **30** days.

Prior to your delegation, you will settle any vacation days which you have accrued in **India**.

You will take your vacation which accrues during your delegation according to the host company regulations and settle your vacation entitlement before your delegation terminates. There will be no transfer of any vacation entitlement to the home company upon termination of your delegation.

4.5 Long-Term Disability

In the event of a long-term disability, the home company reserves the right to initiate your repatriation.

5. Reemployment in the Home Country

After your delegation has ended, this delegation contract will cease and the dormant employment contract will revive.

Your repatriation to **Siemens Technology and Services Private Limited;** will be coordinated by the personnel department of the home company.

Upon your return to the home company, new contractual arrangements will be made with you concerning your future assignment. The available employment opportunities and the professional experience you have acquired during your delegation shall be taken into consideration. The performance of a more senior function in the host company does not entitle you to a comparable position after your return to the home company. The new assignment may, with your consent, be with an affiliate of the home company.

Your salary and the other conditions of employment will solely be based on the regulations of the home company. Your income from the host company will not be taken into consideration, as it relates exclusively to your assignment during your delegation and may include salary elements specific to the host country (function, working hours, purchasing power, exchange rate, etc.).

6. Taxes

Regardless of your tax status in the home country or in the host country, it is your obligation to fully and duly comply with all personal income tax laws of the home and the host country.

All mandatory withholdings on income provided by the home and/or the host company will be borne by you, unless a different agreement is in place.

7. Social Security Insurance

In order to avoid any disadvantages or dual benefits in social security coverage during your delegation, you will, for the period of your delegation, remain in the home company's social security system, as far as legally possible. Reference is made to the "Briefing Protocol" regarding the social security aspects of your delegation.

8. Statutory and Company Pension Benefits

During your delegation, you will remain in the company pension scheme of the home company.

Dual coverage in the host country's social security system and the host company's company pension scheme has to be avoided during your delegation. Should you acquire additional and simultaneous rights to future pension benefits in the host country, you hereby commit to declare an irrevocable waiver of such rights vis-à-vis the host company. Should such waiver, for whatsoever reason, not be legally valid, the portion of such benefits financed by the host company will be deducted from your company pension benefits in the home country.

9. Waiver of Compensation for Termination of Employment with the Host Company

You are obligated to waive any claims of any type of compensation or any other payments against the host company which are based on statutory law or custom and which are due upon termination of your employment with the host company. Should you accept such benefits as a result of mandatory local legal regulations, and not reimburse these to the host company, the financial value of such benefits will be deducted from your future claims against the home company.

10. Other Obligations

You will observe the collateral duties arising from your dormant employment contract with the home company, also in relation to the host company, in particular your obligation to protect the interests of the home company and your secrecy obligation.

In case any delegation related benefits/costs will be reimbursed against receipts, such have to be submitted to the delegation center responsible for you on a monthly basis.

You are obligated to observe the laws and regulations of the host country. Moreover, you commit to respect its cultural customs.

The arrangements made in this agreement shall only be applicable for the duration of your delegation. Neither the change of your working conditions nor changes in your function during your delegation shall constitute any claims against the home company, in particular in regard to the working conditions and your function after your return to the home company.

[If applicable:]

In due time prior to your, your spouse's / *[life partner's]* and dependant children's return to **India**, you have to ensure that you and your afore mentioned relatives hold valid residence and work permits for **India**.

11. Written Form and Exhibits

The Briefing Protocol attached as Exhibit hereto forms an integral part of this Host Based Delegation Contract.

Oral subsidiary agreements do not exist. Amendments and supplements to this contract including this clause require a written instrument to be effective.

12. Severability Clause

In the event that provisions of this contract are or become invalid, the validity of the remainder of the contract shall remain unaffected thereby. The contractual parties are in agreement that the invalid provision shall be replaced by a valid provision which achieves, from an economic point of view, as far as possible the invalid provision. The same shall apply in the event of a contractual gap.

13. Choice of Law

This contract is exclusively subject to the laws of **India**.

14. Legal Venue

The legal venue shall be **India**.

We wish you all the best with your new assignment.

With best regards,

Thakur
Swati

Digitally signed by
Thakur Swati
Date: 2024.06.14
09:23:13 +05'30'

Swati Thakur

Mukherjee
Nilanjana

Digitally signed by Mukherjee Nilanjana
DN: cn=Mukherjee Nilanjana, c=DE,
o=Siemens,
email=nilanjana.mukherjee@siemens.com
Date: 2024.06.14 09:04:16 +05'30'

Nilanjana Mukherjee

Please confirm your agreement to the above stipulations by signing the enclosed duplicate.

Gautam
Ajit

Digitally signed by Gautam Ajit
DN: cn=Gautam Ajit, c=DE,
o=Siemens,
email=ajit.gautam@siemens.com
Date: 2024.06.14 09:48:00 +05'30'

Ajit Gautam

Exhibit
Briefing protocol



Report Date: 2024-03-21
Prepared by: Srinivasan, Aravind / Z004UDHC

Income Confirmation

For

Delegate Name:

Gautam, Ajit

GID:

Z0046D7W

Delegation Type:

Host Based Delegation

HR Host

Name:

Engel, Paul

GID:

Z004HKMN

Email:

paulengel@siemens.com

Salary

Currency (HOST)
EUR

Annual Base Salary:

78.939

Annual Variable Salary:

-

Delegate's Functional Income:

78.939

Gautam
Ajit

Digitally signed by Gautam Ajit
DN: cn=Gautam Ajit, c=DE,
o=Siemens,
email=ajit.gautam@siemens.com
Date: 2024.04.16 20:06:29 +05'30'

Date

Engel Paul

Digital unterschrieben von
Engel Paul
Datum: 2024.03.26 11:37:26
+01'00'

HR Host (Last Name, First Name)